

CALIFORNIA REGIONAL WATER QUALITY CONTROL BOARD
CENTRAL VALLEY REGION

ORDER R5-2012-0030

AMENDING WASTE DISCHARGE REQUIREMENTS
ORDER R5-2008-0179 (NPDES PERMIT NO. CA0078590)

TOWN OF DISCOVERY BAY COMMUNITY SERVICES DISTRICT
DISCOVERY BAY WASTEWATER TREATMENT PLANT
CONTRA COSTA COUNTY

The California Regional Water Quality Control Board, Central Valley Region, (hereafter Central Valley Water Board) finds that:

1. On 4 December 2008, the Central Valley Water Board adopted Waste Discharge Requirements (WDR) Order R5-2008-0179 (NPDES No. CA0078590), prescribing waste discharge requirements for the Discovery Bay Wastewater Treatment Plant, Contra Costa County. For the purposes of this Order, the Town of Discovery Bay Community Services District is hereafter referred to as "Discharger" and the Discovery Bay Wastewater Treatment Plant is hereafter referred to as "Facility."
2. Subsequent to adoption by the Central Valley Water Board, Order R5-2008-0179 was petitioned to the State Water Resources Control Board (State Water Board) by the California Sportfishing Protection Alliance (CSPA) and the San Luis & Delta-Mendota Water Authority and Westlands Water District for, in part, the final effluent limitations for electrical conductivity (EC).
3. On 19 May 2009, the State Water Board adopted a precedential water quality order for the City of Tracy Wastewater Treatment Plant (WQO No. 2009-0003, Tracy Order). In the Tracy Order, the State Water Board addressed the need for water quality-based effluent limitations for EC that is applicable to the Facility. By memorandum dated 11 March 2010 from Dorothy Rice, Executive Director of the State Water Board, to Pamela Creedon, Executive Officer of the Central Valley Water Board, the State Water Board requested the Central Valley Water Board revise the final effluent limitations for EC in accordance with the Tracy Order.
4. A proposed amendment of Order R5-2008-0179 was issued for public comment on 30 September 2010, for a public hearing to be held during the Central Valley Water Board meeting scheduled for 8/9/10 December 2010 to comply with the Tracy Order. However, due to pending litigation of the Tracy Order by the City of Tracy, the proposed amendment was not heard at the December 2010 board meeting. On 1 June 2011, the Superior Court for Sacramento County issued a peremptory writ of mandate (Court Order) and the State Water Board subsequently issued Order 2011-0012-EXEC in response to the Court Order.

5. **Electrical Conductivity Effluent Limitations.** This Order amends Order R5-2008-0179 by re-evaluating the need for water quality-based effluent limitations for EC and is consistent with the Tracy Order and the Court Order.
6. **pH Receiving Water Limitations.** Order R5-2008-0179 contains Receiving Water Limitations for pH which states that the discharge shall not cause a change in receiving water pH of more than 0.5 units (as a monthly average). The Central Valley Water Board adopted resolution R5-2007-0136 on 25 October 2007, amending the Water Quality Control Plan for the Sacramento and San Joaquin River Basins (Basin Plan). The October 2007 Basin Plan amendment removed the 0.5 units change in pH restriction, which became effective 7 July 2009. Therefore, this Order amends Order R5-2008-0179 by removing the 0.5 units change in pH restriction in the Receiving Water Limitations.
7. **Turbidity Receiving Water Limitations.** Order R5-2008-0179 contains Receiving Water Limitations for turbidity. Resolution R5-2007-0136 also modified the Basin Plan water quality objective for turbidity. Therefore, this Order amends Order R5 2008-0179 by modifying the turbidity Receiving Water Limitations to be consistent with the Basin Plan.
8. **Ultraviolet (UV) Disinfection System Operating Specifications.** The Facility includes an UV Disinfection System and Order R5-2008-0179 includes UV Disinfection System Operating Specifications and monitoring requirements to ensure the Facility provides adequate disinfection.

The Discharger conducted a site-specific study of the effluent to determine UV dose response as a function of turbidity. A laboratory study using a collimated beam was performed by Dr. Robert Emerick. The study results demonstrated that a minimum dosage of 80mJ/cm², at a turbidity of 10 NTUs, the system can meet a total coliform limitation of 23 MPN/100ml (7-day median), and at a turbidity of 40 NTUs, the system can meet the total coliform limitation of 240 MPN/100ml (maximum daily). Based on the study results, the UV Disinfection System Operating Specifications have been modified to include minimum UV dose and maximum turbidity specifications in accordance with the study.

9. **Other Miscellaneous Changes.** Additional changes have been made to Order R5-2008-0179 to correct errors or to provide clarity regarding compliance determination.
10. Issuance of this Order is exempt from the provisions of the California Environmental Quality Act (Public Resources Code section 21000, et seq.), in accordance with California Water Code section 13389.

11. The Central Valley Water Board has notified the Discharger and interested agencies and persons of its intent to amend Waste Discharge Requirements for this discharge and has provided an opportunity to submit public comments for Central Valley Water Board consideration.

IT IS HEREBY ORDERED THAT:

Waste Discharge Requirements Order R5-2008-0179 (NPDES No. CA0078590) is amended as shown in underline/strikeout format in Attachment 1 to this Order. This Order is effective upon adoption.

Any person aggrieved by this action of the Central Valley Water Board may petition the State Water Board to review the action in accordance with CWC section 13320 and California Code of Regulations, title 23, sections 2050 and following. The State Water Board must receive the petition by 5:00 p.m., 30 days after the date that this Order becomes final, except that if the thirtieth day following the date that this Order becomes final falls on a Saturday, Sunday, or state holiday (including mandatory furlough days), the petition must be received by the State Water Board by 5:00 p.m. on the next business day. Copies of the law and regulations applicable to filing petitions may be found on the Internet at:

http://www.waterboards.ca.gov/public_notices/petitions/water_quality or will be provided upon request.

I, PAMELA C. CREEDON, Executive Officer, do hereby certify the foregoing is a full, true, and correct copy of an Order adopted by the California Regional Water Quality Control Board, Central Valley Region, on 7 June 2012.

Original signed by

PAMELA C. CREEDON, Executive Officer